EXPLAINER

Your rights in the Church

Baptism makes you a person in the Church, with duties and with rights the law recognizes. Here they are in plain English, together with an honest account of how they are exercised and where the remedies fall short.

Richard Verver, JCL · Canon Lawyer

Where these rights come from

By baptism a person is incorporated into the Church of Christ and "constituted a person in it, with the duties and rights which are proper to Christians" c. 96. The Code then devotes a whole title, canons 208 to 223, to the obligations and rights of all the faithful, lay and ordained alike. The list grew directly out of the Second Vatican Council's teaching on the People of God, and it was new in 1983: the 1917 Code had no such catalogue. Eastern Catholics have a parallel list in their own code.

Two things to notice before reading them. The title speaks of obligations first, and the rights sit among them: to remain in communion, to pursue holiness, to spread the Gospel, to support the Church's needs, to promote social justice cc. 209–211, 222. And these are rights *in the Church*, flowing from membership, not rights against the Church as if it were a foreign power.

The rights, in plain English

- **Equality in dignity.** All the faithful share a true equality in dignity and in action, whatever their office or state c. 208
- **To make your needs known and to speak.** You may freely tell your pastors your needs, especially spiritual ones, and your wishes. According to your knowledge, competence and standing you have the right, and at times the duty, to make your opinion known on matters that concern the good of the Church, to your pastors and to other faithful, with due regard for faith and morals, for reverence toward pastors, and for the common good and the dignity of persons c. 212 §§2–3
- **The Word and the sacraments.** You have the right to receive from your pastors the help that comes from the Church's spiritual goods, above all the Word of God and the sacraments c. 213. Ministers may not refuse the sacraments to those who ask at an appropriate time, are properly disposed and are not prohibited by law from receiving them c. 843 §1
- **Your own rite and spirituality.** You may worship God according to your own approved rite and follow your own form of spiritual life, consonant with the Church's teaching c. 214

- **Associations.** You may freely found and direct associations for charity, piety or the Christian vocation in the world, and hold meetings for those purposes c. 215
- **Apostolate.** You may undertake and support apostolic work on your own initiative, though nothing may call itself "Catholic" without the consent of the competent authority c. 216
- **Education.** You have the right to a Christian education that forms you as a person and leads you to know and live the mystery of salvation c. 217
- **Freedom from coercion** in choosing your state of life c. 219
- **Good name and privacy.** No one may unlawfully harm your good reputation or violate your right to protect your own privacy c. 220
- **Vindication of rights.** You may lawfully vindicate and defend the rights you possess in the Church before the competent ecclesiastical forum c. 221 §1
- **Judgment according to law, with equity.** If you are summoned by a competent authority, you have the right to be judged according to the law, applied with equity c. 221 §2
- **No penalty except according to law** c. 221 §3

The limit

The title ends with a canon that governs all the others. In exercising their rights the faithful must take account of the common good of the Church, the rights of others and their own duties toward others, and ecclesiastical authority may regulate the exercise of these rights in view of the common good c. 223. This is not a loophole. Every legal system qualifies rights by the rights of others. But it does mean that a right in the Church is rarely absolute, and that the authority which regulates its exercise is often the same authority you are dealing with.

How these rights are actually exercised

Petition. The simplest exercise of c. 212 is a letter. You may ask your pastor or bishop for a decision, a dispensation, a correction. If the law requires a decree in answer, the authority has three months to give one, and silence after that is treated as a refusal, so that you can take the matter further c. 57.

Recourse. If a bishop or other authority issues a decree that harms you (a parish merged, a church closed, a position removed, a penalty imposed), the law gives a route of challenge. You first ask the author in writing to revoke or amend it, then take hierarchical recourse to the superior, which for a bishop's decree means the competent dicastery in Rome, and finally, on questions of legality, to the Apostolic Signatura cc. 1732–1739, 1445 §2. The law prefers that disputes be resolved by discussion before any of this, and encourages bishops' conferences to establish mediation offices c. 1733. The deadlines are short:

STEP	DEADLINE	DETAILS
Request for revocation or amendment	10 useful days	In writing, to the author of the decree, from notification c. 1734 §2
Author's response	30 days	Silence counts as refusal c. 1735
Hierarchical recourse	15 useful days	To the superior; for any just reason c. 1737
Recourse to the Signatura	60 useful days	On the legality of the dicastery's decision, not its wisdom

"Useful days" are days on which you knew of the decree and were able to act c. 201 §2. Once a period runs out the right is lost. See administrative recourse explained and how I help with recourse.

An advocate. You may be represented in a trial and in recourse cc. 1481, 1738. In a penal trial the accused must always have an advocate c. 1481 §2. Advocates are approved by the bishop of the tribunal they appear before c. 1483.

A tribunal. Rights are vindicated judicially before diocesan and regional tribunals, with appeal to a higher tribunal and ultimately to the Roman Rota cc. 1400, 1419–1444. Most tribunal work in Canada and the United States is marriage nullity; see marriage nullity. In a penal matter you are presumed innocent, you must be told the accusation and the proofs and be allowed to defend yourself before any penalty is declared by decree, and recourse against such a decree suspends it while the recourse is decided cc. 1321 §1, 1720, 1353. See penal advocacy.

The real limits

I would be doing you no favour if I stopped there. The rights are real, and the remedies are real, but they are weaker than their civil counterparts in several ways.

No general administrative court. The Code allows for administrative tribunals c. 1400 §2, but none has been established in Canada or the United States, and very few anywhere. A dispute with a bishop about an administrative decision therefore cannot be brought before a local judge. It goes up the hierarchy instead.

The bishop wears several hats. In his diocese the bishop holds legislative, executive and judicial power c. 391. The first step in challenging his decree is to ask him to reconsider it, and his own tribunal cannot review it. That is how the Church is constituted, and most bishops take the duty of reconsideration seriously, but it means that the first independent review of a bishop's decision happens in Rome.

Slowness, distance and cost. Hierarchical recourse to a dicastery routinely takes a year or more, is conducted in writing and often in a language not your own, and the reasons given can be brief. The Signatura re-

views legality, not whether the decision was wise or kind. Mediation offices under c. 1733 exist in only a few dioceses.

Rights that depend on judgment. Canon 212 gives you a right to be heard, not a right to be agreed with. Canon 213 gives a right to the sacraments, but c. 843 adds conditions, judged in the first instance by the minister. Canon 220 protects your reputation, but the remedy is narrow and slow.

None of this means the rights are empty. Many disputes are resolved at the first letter, because the authority had not seen the whole picture, and recourse succeeds more often than people assume, especially where a procedure was skipped. If you feel the system is against you, this page is written for you.

What a canon lawyer does

A canon lawyer tells you honestly what the law gives you and what it does not. In a dispute, that means identifying the canon that governs the decision, checking whether the procedure was followed, drafting the petition or recourse so that it says what the deciding authority needs to hear, meeting the deadlines, and representing you before the tribunal or dicastery. It also means saying, when it is true, that a remedy is unlikely to succeed. Clergy and religious have additional rights and particular vulnerabilities; see clergy and religious in difficulty.

In practice: if you have received a decree, note the date you received it and write it down. Nearly every remedy in this article runs from that day, and the first deadline is ten useful days. Speak to someone before it passes.

KEY CANONS

- **c. 96** baptism confers the rights of a Christian
- **c. 208** equality in dignity
- **c. 212 §§2–3** to make needs known; to speak
- **c. 213** the Word and the sacraments
- **c. 220** good name and privacy
- **c. 221** vindication, judgment with equity, no penalty except by law
- **c. 223** the common good as limit
- **cc. 1732–1739** recourse against decrees

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